MEMORANDUM
FURTHER OPTIONS AFTER ALLOWANCE OF U.S. UTILITY PATENT APPLICATION

The following are options which may be worth considering after a U.S. utility patent application has been allowed. Each of these options could involve significant additional expense which will not be justified in every case. However, this expense may prove to be a wise investment, especially if this patent application is viewed as having a potentially large commercial impact.

1. Formulate additional claims.
   We review the application with you and formulate additional claims, if different, or additional protection appears possible. It often happens that opportunities to claimed subject matter which was present in the original application are easier to identify sometime after the patent application has been written. For example, the novelty of a disclosed feature, alternative formulation, etc. may not have been apparent at the time the application was written or during prosecution, when claims are typically amended. If we can identify subject matter for such additional claims, they could be presented in a continuing application.

2. Continuing applications.
   There are several types of continuing applications, each of which must be filed during the pendency of the "parent" application. Consequently, any such continuing application would have to be filed prior to the issue date of the parent application. The use of any or all continuing applications may be advisable depending upon the specific facts of the given case. Several types of continuing applications are described below. The patent terms for these continuation applications are calculated from the parent application's filing date even though they would issue at a later date. The USPTO fees, including the filing fees, issue fees and maintenance fees are multiplied by the total number of applications filed and patents issued.

3. Continuation-type application.
   If additional subject matter has been found which has not been claimed in the first patent application, new claims would be prosecuted in a separate continuation application.

4. Divisional application.
   A divisional application may be filed to claim a second invention which is disclosed in the parent application but which was deemed to be independent or distinct from the first invention whose claims have already been allowed. Often, a divisional application is filed after the Patent Examiner handling the parent case has asserted a Restriction Requirement, indicating official refusal to examine claims directed to more than one invention in the parent patent application.

5. Continuation-in-part "CIP".
   A CIP application may be filed when there is reason to add new matter, i.e. additional subject matter, to the specification of the parent application. Common situations in which CIP's are employed include when improvements of patentable merit are made to an invention disclosed in the parent application and/or discoveries that the disclosed processes operate in parameters outside that disclosed in the parent application. The description of the improvement is added to the specification to form the CIP and additional claims are added which can be based on the original disclosure, the new matter or a combination of both. It should be remembered, however, that any claim that recites, in whole or in part, any new matter has priority only to the later application in which the new matter is disclosed.